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Attorney for Defendant
DALTON C. GAUDIN

Electronically FILED by
Superior Court of California,
County of Los Angeles
4/15/2024 11:06 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By M. Bell, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
NORTH VALLEY DISTRICT

STUDENT LOAN SOLUTIONS	)	Case No. 24CHLC00778
LLC,	)	
	)	NOTICE OF DEMURRER AND
Plaintiff,	)	DEMURRER OF DALTON C GAUDIN
	)	TO THE COMPLAINT OF STUDENT
vs.	)	LOAN SOLUTIONS LLC
	)	
DALTON C GAUDIN aka DALTON	)	<i>(Filed concurrently with Memorandum of</i>
CALEB GAUDIN and DOES 1	)	<i>Points and Authorities; Request for Judicial</i>
through 30, Inclusive,	)	<i>Notice; Declaration of Daniel "Sparky"</i>
	)	<i>Abraham; and [Proposed] Order)</i>
Defendants	)	
	)	Date: May 16, 2024
	)	Time: 8:30 am
	)	Dept: F41
	)	
	)	Reservation ID: 945662718873

TO PLAINTIFF STUDENT LOAN SOLUTIONS LLC, AND ITS ATTORNEY OF
RECORD:

PLEASE TAKE NOTICE that on May 16, 2024, at 8:30 am, or as soon thereafter
as the matter can be heard in Department F41 of the above-entitled Court, located at
Chatsworth Courthouse, 9425 Penfield Ave., Chatsworth, CA, 91311, DALTON C
GAUDIN will demur to the Complaint filed by STUDENT LOAN SOLUTIONS LLC
("SLS") on January 9, 2024.

DEMURRER

Defendant demurs to Plaintiff's single cause of action for breach of contract on the basis that the cause of action is barred by the four-year period of limitations codified in Cal. Code of Civ. Proc. § 337 on the face of the Complaint, because the Complaint and attached documents indicating that the breach occurred in 2010, and because judicially noticeable documents filed by Plaintiff in a previous case indicate that the subject loan was accelerated in August, 2018. In addition, Plaintiff's objectively unreasonable delay demonstrated on the face of the Complaint constitutes a waiver of any right to accelerate the subject loan.

The demurrer is based on this Notice and Demurrer, the Memorandum of Points and Authorities in Support, the Request for Judicial Notice filed herewith, the files and records in this action, and any further evidence and argument that the Court may receive at or before the hearing.

Dated: April 15, 2024

Signed: _____


Daniel "Sparky" Abraham, Jubilee Legal
Attorney for Defendant Dalton C Gaudin



Make a Reservation

STUDENT LOAN SOLUTIONS, LLC vs DALTON C GAUDIN

Case Number: 24CHLC00778 Case Type: Civil Limited Category: Collections Case - Purchased Debt (Charged Off Consumer Debt Purchased on or after January 1,2014)
Date Filed: 2024-01-09 Location: Chatsworth Courthouse - Department F41

Reservation	
Case Name: STUDENT LOAN SOLUTIONS, LLC vs DALTON C GAUDIN	Case Number: 24CHLC00778
Type: Demurrer - without Motion to Strike	Status: RESERVED
Filing Party: Dalton C Gaudin (Defendant)	Location: Chatsworth Courthouse - Department F41
Date/Time: 05/16/2024 8:31 AM	Number of Motions: 1
Reservation ID: 945662718873	Confirmation Code: CR-DP2KHAT8VS43FFTBP

Fees			
Description	Fee	Qty	Amount
Demurrer - without Motion to Strike	0.00	1	0.00
TOTAL			\$0.00

Payment	
Amount: \$0.00	Type: NOFEE
Account Number: n/a	Authorization: n/a
Payment Date: 1969-12-31	

- Print Receipt
- Reserve Another Hearing
- View My Reservations